

Opinion of the Court

raises ‘concerns for the separation of powers’” (quoting *Christopher v. Harbury*, 536 U. S. 403, 417 (2002))).

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Our reluctance to take that step is reinforced by our survey of what Congress has done in statutes addressing related matters. We frequently “loo[k] to analogous statutes for guidance on the appropriate boundaries of judge-made causes of action.” *Jesner*, 584 U. S., at 265 (opinion of Kennedy, J.). When foreign relations are implicated, it “is even more important . . . ‘to look for legislative guidance before exercising innovative authority over substantive law.’” *Ibid.* (quoting *Sosa v. Alvarez-Machain*, 542 U. S. 692, 726 (2004)). Accordingly, it is “telling,” *Abbasi*, 582 U. S., at 144, that Congress has repeatedly declined to authorize the award of damages for injury inflicted outside our borders.

A leading example is Rev. Stat. § 1979, 42 U. S. C. § 1983, which permits the recovery of damages for constitutional violations by officers acting under color of *state* law. We have described *Bivens* as a “more limited” “federal analog” to § 1983. *Hartman v. Moore*, 547 U. S. 250, 254, n. 2 (2006). It is therefore instructive that Congress chose to make § 1983 available only to “citizen[s] of the United States or other person[s] within the jurisdiction thereof.” It would be “anomalous to impute . . . a judicially implied cause of action beyond the bounds [Congress has] delineated for [a] comparable express caus[e] of action.” *Blue Chip Stamps v. Manor Drug Stores*, 421 U. S. 723, 736 (1975). Thus, the limited scope of § 1983 weighs against recognition of the *Bivens* claim at issue here.

Section 1983’s express limitation to the claims brought by citizens and persons subject to United States jurisdiction is especially significant, but even if this explicit limitation were lacking, we would presume that § 1983 did not apply abroad. See *RJR Nabisco, Inc. v. European Community*, 579 U. S. 325, 335 (2016) (“Absent clearly expressed congressional intent to the contrary, federal laws will be construed to have